ORDINANCE NO. 426
OF
THE CITY OF RECTOR, ARKANSAS

AN ORDINANCE TO REGULATE THE PLACEMENT OF TILES ON PRIVATE DRIVEWAYS LOCATED ON CITY PROPERTY AND TO PROVIDE A PENALTY FOR FAILURE TO REMOVE TILES THAT HAVE BEEN PREVIOUSLY PLACED ON CITY PROPERTY THAT ARE CAUSING DRAINAGE PROBLEMS TO THE STREETS OF RECTOR, TO REGULATE AND REQUIRE THE CITIZENS OF RECTOR THAT ARE INTENDING TO REPLACE THE TILES OR PLACE NEW TILES, TO OBTAIN A PERMIT AND INSPECTIONS BY THE RECTOR WATER DEPARTMENT AND TO PROVIDE FOR PENALTIES FOR FAILURE TO OBTAIN THE PROPER PERMIT AND FOR FAILURE TO REMOVE TILES THAT HAVE BEEN PREVIOUSLY PLACED AND CAUSING A DRAINAGE PROBLEM TO THE STREETS, AND DECLARING AN EMERGENCY.

BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF RECTOR, ARKANSAS, AS FOLLOWS TO-WIT,:

WHEREAS, the City of Rector has expended a great sum of money for the construction and reconstruction of the streets located within the City of Rector; and

WHEREAS, it has been shown that there are drainage tiles that have been placed in private driveways on city property without proper and adequate drainage and are causing the streets of the City of Rector to overflow and cause damage to the streets; and

WHEREAS, in the future it has been determined that all persons that are placing tiles on city property for private driveways must obtain a permit from the Rector Water Department and obtain necessary approval for construction; and

WHEREAS, it is determined that there are now located in private driveways, tiles that were placed previous to this Ordinance and are still obstructing water, which is causing damages to the City of Rector streets; and

WHEREAS, it is shown to be in the best interest to the persons of Rector, that all persons shall be ordered to comply with this Ordinance after its passage; and

NOW THEREFORE BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF RECTOR, ARKANSAS, AS FOLLOWS, TO-WIT

FOR THE PURPOSE OF THIS ORDINANCE THE FOLLOWING DEFINITIONS SHALL APPLY.

TILE: A CONCRETE OR STEEL STRUCTURE IN PLACE TO CARRY SURFACE WATER FOR THE PURPOSE OF DRAINAGE.

CITY PROPERTY: PROPERTY OWNED BY THE CITY OF RECTOR, NOT ABANDONED OR SOLD

DAMAGE TO STREETS: ANY DIVERSION OF THE WATER FROM ITS NATURAL STATE CREATED BY THE INSTALLATION OF THE TILE THAT CAUSES DAMAGE TO THE STREETS OF RECTOR.

OWNER: THE FEE SIMPLE OR ONE WHO HOLD MARKETABLE TITLE TO THE PROPERTY.

SECTION 1. The City of Rector, Arkansas, hereby declare that all persons constructing private driveways and locating tiles on city property must obtain a city permit from the Rector Water Department and be approved prior to the construction.

SECTION 2. The citizen applying for the permit must pay a $5.00 fee for the application to be paid the City of Rector at the Rector Water Department Office and must be approved prior to construction, by the Rector Street Department Superintendent or his authorized representative.

SECTION 3. The City of Rector has determined that there are already numerous tiles that have been placed on private driveways that are not properly draining water and causing damages to the property and therefore if notified by the Rector Water Department or Street Department that the tiles are causing damage and willfully fail to remove or replace the tile or do so as instructed by the Rector Water Department or Street Department shall be deemed guilty of a misdemeanor and punishable as described in Section 5. Replacement of the tiles shall be at the owners expense.

SECTION 4. Failure of any individual or person to comply with this Ordinance shall be guilty of a misdemeanor and punished as herein set forth.

SECTION 5. It is declared that any violation of this Ordinance is punishable by a $25.00 a day fine and each and separate day that the owner constructs or leaves the tile, without a permit or continues to leave a tile on city property, without approval, shall be deemed a separate offense and shall be fined $25.00 a day for each day of violation.

SECTION 6. This Ordinance shall take effect and be in force from and after its passage.

This ordinance being necessary for the health, safety and welfare of the persons of Rector and necessary for the maintenance of the Rector city streets, an emergency is

declared to exist and this ordinance shall take effect and be in force from an after its passage.

Passed and approved by the City Council of the City of Rector, this ____ day of _____, 1995.

Ron Kemp, Mayor

ATTEST:

Kenneth R. Burns, City Clerk